



SPONSOR: Rep. Kamela Smith & Sen. Pinkney
Reps. Gorman, Griffith, K. Johnson, Morrison, Osienski,
Ross Levin, Snyder-Hall, S. Moore, Bush, Lambert; Sens.
Hocker, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 149

AN ACT TO AMEND TITLE 18 OF THE DELAWARE CODE RELATING TO SCHOOL-BASED HEALTH CENTERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 3365, Title 18 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3365. School-based health centers.

4 (a) For purposes of this section, a school-based health center (SBHC) is a health clinic that:

5 (1) Is located in or near a school facility;

6 (2) Is organized through school and health provider relationships;

7 (3) ~~Provides~~ Except as provided by subsection (h) of this section, provides through licensed professionals
8 primary health services to children, including comprehensive health assessments, diagnosis, and treatment of minor,
9 acute, and chronic medical conditions, referrals to and follow-up for specialty care and oral and vision health services,
10 mental health and substance use disorder assessments, crisis intervention, counseling, treatment, and referral to a
11 continuum of mental health and substance abuse services including emergency psychiatric care, community support
12 programs, inpatient care, and outpatient programs; and

13 (4) Is recognized by the State pursuant to relevant regulations and law.

14 (h) DPH shall have the authority to approve supervised clinical training rotations for mental health providers at
15 SBHCs.

16 Section 2. Amend § 3571G, Title 18 of the Delaware Code by making deletions as shown by strike through and
17 insertions as shown by underline as follows:

18 § 3571G. School-based health centers.

19 (a) For purposes of this section, a school-based health center (SBHC) is a health clinic that:

20 (1) Is located in or near a school facility;

21 (2) Is organized through school and health provider relationships;

22 (3) ~~Provides~~ Except as provided by subsection (h) of this section, provides through licensed professionals
23 primary health services to children, including comprehensive health assessments, diagnosis, and treatment of minor,
24 acute, and chronic medical conditions, referrals to and follow-up for specialty care and oral and vision health services,
25 mental health and substance use disorder assessments, crisis intervention, counseling, treatment, and referral to a
26 continuum of mental health and substance abuse services including emergency psychiatric care, community support
27 programs, inpatient care, and outpatient programs; and

28 (4) Is recognized by the State pursuant to relevant regulations and law.

29 (h) DPH shall have the authority to approve supervised clinical training rotations for mental health providers at
30 SBHCs.

SYNOPSIS

 This Act gives DPH the authority to approve supervised clinical training rotations for mental health providers at school-based health centers.